

John

Date: 4/3/18

**AGREEMENT BETWEEN THE CITY OF CHEYENNE AND
AMAZING AMUSEMENTS
FOR GAME MACHINES AT THE
CHEYENNE ICE & EVENTS CENTER**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, hereafter "City," whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Amazing Amusements, hereafter "Provider," whose mailing address is 2830 Forest Drive, Cheyenne, Wyoming 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to permit the Provider to supply game machines to be placed in the arcade area at the City of Cheyenne Ice & Events Center, hereafter "Ice & Events Center," located at 1530 West Lincolnway, Cheyenne, Wyoming. The Provider agrees to provide such services in accordance with Exhibit A attached hereto, incorporated by reference and expressly made a part hereof.
3. **Term.** This Agreement is effective when all parties have executed it and all approvals have been granted. The term of this Agreement shall be from April 1, 2018 through March 31, 2022. This Agreement may be renewed for one (1) additional five (5) year period on the terms mutually agreed upon in writing by the parties.
4. **Payment.** The Provider shall collect the money from the game machines and the revenue shall be paid according to the calculations set forth in Exhibit A. Upon termination of this Agreement and prior to the removal of the game machines by Provider, the Provider shall immediately collect the money from the game machines and disburse the revenue according to the calculations set forth in Exhibit A.
5. **Insurance Requirements.** The Provider shall name the City as an Additional Insured by endorsement on the Provider's General Liability policy and shall provide the City with a copy of the endorsement. Provider shall provide the City with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement. The Provider must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Additional Insurance Information

The Provider shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of workers' compensation and shall provide the City with a copy of the endorsements. Provider shall also carry insurance to cover loss of equipment and goods located at the Cheyenne Ice & Events Center.

Provider shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Provider to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Provider shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Provider's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

6. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- B. **Applicable Law.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.
- C. **Compliance with Laws.** The Provider shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.
- D. **Entirety of Agreement.** This Agreement consisting of four (4) pages, and Exhibit A consisting of one (1) page, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- E. **Force Majeure.** Neither of the parties to this Agreement shall be liable for failure to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of such party. Such causes may include, but are not limited to, Acts of God or the public enemy, fire, flood, epidemic, quarantine restrictions, freight embargoes and unusually severe weather. In every case,

however, a failure to perform must be beyond the control and without the fault or the negligence of the non-performing party.

- F. **Indemnification/Hold Harmless.** The Provider agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Provider's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Provider, or its employees or subcontractors in the performance of this Agreement. The Provider acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.
- G. **Independent Contractor.** The Provider shall function as an independent contractor for the purposes of this Agreement. The Provider shall assume sole responsibility for any debts or liabilities that may be incurred by the Provider in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Provider or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City. The Provider shall pay any and all taxes which are or may become due in connection with performance of this Agreement including, but not limited to, local, state and federal taxes.
- H. **Notice.** All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.
- I. **Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement nor shall payment be made until this Agreement has been reduced to writing and approved by all necessary authorities.
- J. **Governmental Immunity.** The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*
- K. **Termination.** This Agreement will terminate upon the expiration of the terms set forth above, unless extended by agreement of both parties. This Agreement may be terminated for cause without liability in the event the other party fails to perform, provided the non-terminating party is first notified of the breach and given a thirty (30) day period to cure any breach.

7. **Signatures.** In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

AMAZING AMUSEMENTS

April 11th
Date


Robert Brooks, Owner

CITY OF CHEYENNE

Date

Marian J. Orr, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

EXHIBIT A

Location.

The game machines will be placed on the south, north and east walls of the arcade space of the Ice & Events Center. The Bubble hockey and Air hockey game machines will be located along the north wall near the concessions area.

Maintenance; Service.

1. Provider will keep all game machines clean and in working order at all times.
2. If a game machine malfunctions, Ice & Event Center staff will contact Provider as soon as possible and report the issue to ensure the game machines remain operable.
3. If, at any time the City is displeased with a game machine or a game machine has constant issues, the City will contact the Provider to discuss the options available for exchanging that game machine for a different game machine.
4. If a game machine needs moved to another area, Ice & Events Center staff will contact Provider and make the necessary arrangements to have the game machine moved.

Collection of Cash; Revenue Distribution; Refunds.

1. The cash will be emptied out of a specific group of game machines every two to four weeks. Ice & Events Center staff may monitor this process. Coin meters in all game machines will be fully tracked and recorded each time a game machine is emptied.
2. The revenue paid to the City will be 35% for new game machines and 40% for older game machines.
3. The revenue paid to the Provider will be 65% for new game machines and 60% for older game machines.
4. Ice & Events Center staff will maintain a list of refunds given to customers in the event game machines take the customer's money. The list will include which game machine did not give the customer a credit for the money inserted into the game machine. Ice & Events Center staff shall use good judgment when issuing refunds.
5. Should any liquid get spilled on the Air hockey game machine, Ice & Events Center staff shall insert \$1.00 in the game machine to start the air blowing and immediately clean up the spill. The \$1.00 will be refunded to the Ice & Events Center.

Change Machine.

Provider will supply and maintain a change machine to be located at the Ice & Events Center. If the change machine malfunctions, Ice & Events Center staff will contact the Provider as soon as possible and report the issue to ensure the change machine remains operable.



BROOROB-02

MCARRE

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

04/11/2018

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Burns Insurance Agency, Inc 237 Storey Blvd Suite 200 Cheyenne, WY 82009	CONTACT NAME:	PHONE (A/C, No, Ext): (307) 634-5757	FAX (A/C, No): (307) 634-7236
	E-MAIL ADDRESS:		
INSURED Brooks, Robert E DBA Amazing Amusements 2830 Forest Dr Cheyenne, WY 82001	INSURER(S) AFFORDING COVERAGE		NAIC #
	INSURER A: The Hartford		38288
	INSURER B:		
	INSURER C:		
	INSURER D:		
	INSURER E:		
INSURER F:			

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PROJECT ☐ LOC ☐ OTHER	X		34SBMIK8281	04/11/2018	04/11/2019	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 1,000,000 MED EXP (Any one person) \$ 10,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000
	AUTOMOBILE LIABILITY ☐ ANY AUTO OWNED AUTOS ONLY ☐ HIRED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ NON-OWNED AUTOS ONLY						COMBINED SINGLE LIMIT (Ea accident) \$ BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$
	UMBRELLA LIAB ☐ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED ☐ RETENTION \$ ☐						EACH OCCURRENCE \$ AGGREGATE \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory In NH) ☐ Y/N If yes, describe under DESCRIPTION OF OPERATIONS below	N/A					PER STATUTE ☐ OTH-ER ☐ E.L. EACH ACCIDENT \$ E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

ARCADE GAMES LOCATED AT:
CHEYENNE ICE & EVENTS CENTER
1530 W LINCOLNWAY
CHEYENNE WY 82001

CERTIFICATE HOLDER

CANCELLATION

CITY OF CHEYENNE
2101 O NEIL AVE
Cheyenne, WY 82001

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE